

Key thinkers driving humanistic currents in contemporary sharia

Analysis run: September 12, 2026

PROVIDER	MODEL	LANGUAGE	AUDIENCE
Openrouter	Anthropic/claude-opus-4.7	En	GENERAL
INTONATION	LENGTH	TEMPERATURE	
NEUTRAL	Long	0.7	

SYSTEM PROMPT

You are an expert AI content generator specializing in creating structured article.

USER PROMPT

Write a concise, self-contained article entry for the title: "Key thinkers driving humanistic currents in contemporary sharia".

Overall topic for alignment: Intellectual networks shaping humanistic trends in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

Target audience: GENERAL. Writing tone: NEUTRAL.

SUMMARY

Summary: Humanistic Currents in Contemporary Sharia

A transnational network of scholars—based in Cairo, Rabat, Tehran, Istanbul, Kuala Lumpur, and Western diaspora communities—is reshaping Islamic legal thought through a humanistic orientation grounded in *maqāṣid al-sharīʿa* (higher objectives of sharia). Reformers expand the classical *maqāṣid* (protection of life, intellect, religion, lineage, property) to include freedom, dignity, and pluralism, anchoring their work in Quranic themes of mercy, justice, and non-compulsion.

Key thinkers and contributions:

- **Fazlur Rahman:** "double movement" hermeneutic linking Quranic rulings to ethical principles and back to modern application.
- **Mohammed Arkoun:** "applied Islamology" using historical/anthropological critique.
- **Abdolkarim Soroush:** distinguishes religion from human knowledge of religion.
- **Khaled Abou El Fadl:** critiques authoritarian readings, emphasizes conscience.
- **Tariq Ramadan:** "radical reform" for European Muslim minorities.
- **Abdullahi An-Na'im:** historical contextualization, civic sharia compatible with human rights.
- **Yusuf al-Qaradawi:** developed *fiqh al-aqallīyyāt* (jurisprudence of minorities).
- **Mohammad Hashim Kamali:** *maqāṣid*, freedom of expression, moderation.

Methodology: Reformers draw on the four Sunni schools and Shia (Jaʿfarī) jurisprudence, employing *takhayyur* (cross-school selection), *talfīq* (combining rulings), and *tajdīd/iṣlāḥ* (renewal/reform). Mālikī *maṣlaḥa* and Ḥanafī *istiḥsān* are especially generative. Theologically, these currents lean on Muʿtazilī rationalism, Māturīdī ethics, and Sufi traditions, while critics argue from Ashʿarī or Salafī positions.

Contexts: In Muslim-majority states, debates focus on constitutional sharia, codification, women's status, and belief freedom. In minority contexts, *fiqh al-aqallīyyāt* balances integration with tradition.

Dialogues: Humanistic scholars engage critically with Orientalist scholarship (Goldziher, Schacht, Hallaq—whose argument that the modern state distorts traditional sharia is influential) and with human rights frameworks, arguing core rights align with *maqāṣid* (contra dilutions like the 1990 Cairo Declaration).

AI dimension: AI assists in indexing *fiqh* corpora, comparing juristic opinions, and surfacing minority views, but is viewed as a support tool for *ijtihād*, not a replacement, given risks of algorithmic bias and decontextualization.

The unifying conviction: properly understood, Islamic law is oriented toward human flourishing.

Key Thinkers Driving Humanistic Currents in Contemporary Sharia

The conversation around *sharīʿa* (شريعة) in the twenty-first century is no longer confined to traditional madrasas or formal fatwa councils. A growing intellectual network—spanning Cairo, Rabat, Tehran, Istanbul, Kuala Lumpur, and diaspora communities in Europe and North America—has been reshaping how Islamic law is read, interpreted, and applied. At the heart of this movement lies a humanistic orientation: an insistence that the *maqāṣid* (مقاصد), or higher objectives of sharia, must serve human dignity, justice, and the welfare of communities living under widely varying political conditions.

This entry surveys the thinkers, methods, and contexts that animate these humanistic currents.

Quranic Foundations and the Maqāṣid Turn

Humanistic readings of sharia typically anchor themselves in Quranic verses emphasizing mercy (*rahma*, رحم), justice (*ʿadl*, عدل), and the prohibition of compulsion in religion (Q 2:256). Equally central is the classical doctrine of *maqāṣid al-sharīʿa*—the higher purposes traditionally enumerated as the protection of life, intellect, religion, lineage, and property. Contemporary scholars have expanded this list to include freedom, human dignity, and pluralism.

The *maqāṣid* framework, originally systematized by classical jurists such as al-Juwaynī, al-Ghazālī, and al-Shāṭibī, has become the principal bridge between premodern legal heritage and modern humanistic concerns. By foregrounding purposes over literal rulings, reformers argue that sharia is inherently adaptive.

Key Thinkers and Their Contributions

Several figures recur in any survey of humanistic sharia thought:

- **Fazlur Rahman (d. 1988):** The Pakistani-American scholar proposed a "double movement" hermeneutic—moving from specific Quranic rulings to underlying ethical principles, then back to contemporary application. His work remains foundational for scholars seeking to harmonize revelation with modern ethics.
- **Mohammed Arkoun (d. 2010):** An Algerian thinker influenced by French critical theory, Arkoun called for an "applied Islamology" that subjects Islamic legal tradition to historical and anthropological scrutiny without abandoning faith.

- **Abdolkarim Soroush:** An Iranian philosopher who distinguishes between religion itself and human knowledge of religion, opening space for evolving juristic interpretation.
- **Khaled Abou El Fadl:** A scholar trained in both classical *fiqh* and Western law, who critiques authoritarian readings of sharia and emphasizes conscience, beauty, and moral agency.
- **Tariq Ramadan:** Working primarily in European Muslim contexts, he advocates a "radical reform" rooted in *maqāṣid* and addresses Muslims as **minorities** in non-Muslim majority societies.
- **Abdullahi Ahmed An-Na'im:** A Sudanese jurist who argues for the historical contextualization of Medinan rulings and the cultivation of a "civic" sharia compatible with constitutionalism and human rights.
- **Yusuf al-Qaradawi (d. 2022):** Though more traditionalist, his development of *fiqh al-aqalliyyāt* (فقه الأقليات), the jurisprudence of minorities, has shaped how Muslims in non-Muslim-majority countries approach legal practice.
- **Mohammad Hashim Kamali:** A Malaysian-based jurist whose works on *maqāṣid*, freedom of expression, and moderation have widely influenced Anglophone Islamic legal studies.

Engagement with the Classical Juristic Schools

Humanistic thinkers do not reject the classical *madhāhib* (مذاهب). The four Sunni schools—**Ḥanafī**, **Mālikī**, **Shāfi'ī**, and **Ḥanbalī**—as well as Shia schools such as the Ja'farī, provide a vast reservoir of doctrinal options. Reformers often employ:

- **Takhayyur** (تخيير): selecting from across schools to address modern issues.
- **Talfiq** (تلفيق): combining elements from different schools within a single ruling.
- **Tajdīd** (تجديد) and **iṣlāḥ** (إصلاح): renewal and reform of inherited rulings.

The Ḥanafī tradition, with its early use of *istiḥsān* (juristic preference), and the Mālikī school, with *maṣlaḥa* (public welfare) and *urf* (custom), have proved particularly fertile for humanistic reinterpretation. The Shāfi'ī systematization of *uṣūl al-fiqh* provides methodological rigor, while the Ḥanbalī tradition—often perceived as strict—nonetheless contains principles such as the presumption of permissibility (*ibāḥa*) that support contemporary reform.

Theological Backdrop

Theological orientation matters. Humanistic currents often draw on the **Mu'tazilī** emphasis on reason and divine justice, the moral rationalism implicit in some **Māturidī** thought, and the ethical mysticism of various **Sufi** traditions. Critics of these currents typically argue from stricter **Ash'arī** or Salafī positions, contending that prioritizing reason or *maqāṣid* risks subordinating revelation to changing human preferences.

Majority and Minority Contexts

The intellectual challenges differ across settings. In Muslim-majority states, debates focus on constitutional incorporation of sharia, codification, the status of women, and freedom of belief. In minority settings—Western Europe, North America, India—the question is how Muslims can live ethically and lawfully under non-Islamic legal systems while preserving religious identity. *Fiqh al-aqalliyyāt* responds to this need, balancing accommodation, integration, and continuity with tradition.

Orientalist Perspectives and Critical Dialogue

The orientalist legacy—from Ignaz Goldziher and Joseph Schacht to contemporary scholars such as Wael Hallaq—has profoundly shaped academic study of Islamic law. Early orientalists often portrayed sharia as static or detached from social practice; later scholarship has demonstrated its historical dynamism. Muslim humanistic thinkers engage critically with this literature, accepting useful historical insights while rejecting reductive framings. Hallaq's argument that the modern state structurally transforms (and sometimes distorts) traditional sharia has been particularly influential in shaping reformist self-awareness.

Sharia and Human Rights

A central tension—and opportunity—lies in the relationship between sharia and the Universal Declaration of Human Rights (1948). Documents such as the Cairo Declaration on Human Rights in Islam (1990) attempted an Islamic framing, while critics argued it diluted universal protections. Humanistic thinkers increasingly contend that core rights—dignity, equality, freedom of conscience, due process—are not foreign impositions but compatible with, and even demanded by, the higher objectives of sharia. An-Na'im and Kamali have written extensively in this vein.

The Role of Artificial Intelligence

A newer dimension involves artificial intelligence. AI tools are being used to index classical legal corpora, compare juristic opinions across schools, and assist researchers in identifying patterns within the vast *fiqh* literature. Some scholars discuss whether AI can support a "humanistic" approach to sharia—by democratizing access to legal heritage, surfacing minority opinions historically overlooked, and helping jurists weigh *maqāṣid* considerations. Concerns include algorithmic bias, the risk of decontextualized rulings, and the displacement of trained human scholars whose ethical judgment cannot be automated. The consensus among most thinkers is that AI is a tool for *ijtihād* support, not its replacement.

Conclusion

Humanistic currents in contemporary sharia are sustained by a transnational network of thinkers who combine classical training with modern disciplines—philosophy, history, law, and increasingly computational methods. By foregrounding maqāṣid, engaging the heritage of the four Sunni schools and Shia jurisprudence, dialoguing with orientalist scholarship, and confronting human rights debates, these scholars seek a sharia that is faithful to its sources and responsive to the moral horizons of the present. Whether in majority or minority contexts, the unifying thread is the conviction that Islamic law, properly understood, is oriented toward human flourishing.

SEGMENTED DATA (1)

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